



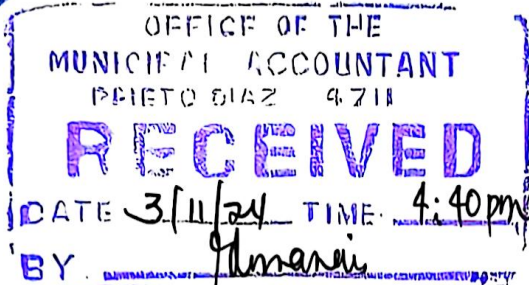
Republic of the Philippines
MUNICIPALITY OF PRIETO DIAZ

Prieto Diaz, Sorsogon 4711
LGU TIN: 000794065
Email Address: sbprietodiaz@gmail.com

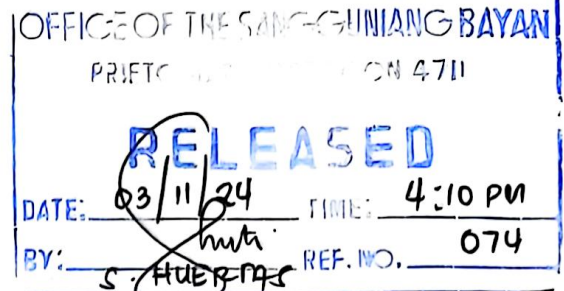


Office of the Secretary to the Sangguniang Bayan

SBOC - 03112024 074



1st Endorsement
March 11, 2024



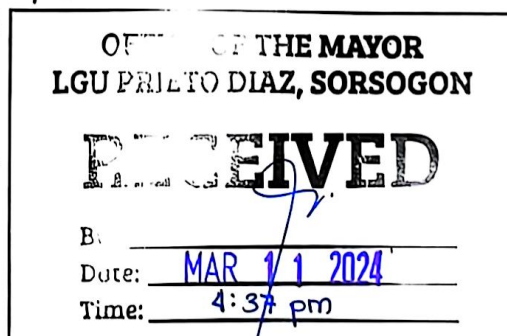
Respectfully transmitted to **Hon. ROMEO DOMASIAN**, Municipal Mayor, the herein attached Resolution No. 083-2024 entitled: **"A RESOLUTION AUTHORIZING THE MUNICIPAL MAYOR, HON. ROMEO D. DOMASIAN, TO ENTER INTO A MEMORANDUM OF AGREEMENT WITH THE OFFICE OF THE PRESIDENTIAL ADVISER ON PEACE, RECONCILIATION AND UNITY (OPAPRU) REPRESENTED BY SECRETARY CARLITO G. GALVEZ, JR. FOR THE CONCRETING OF SAN RAFAEL ROAD (PHASE 5 COMPLETION) IN BRGY. SAN RAFAEL, PRIETO DIAZ, SORSOGON"** for his information and appropriate action.



BERNADETTE R. ESPEÑA – YAO
Secretary to the Sangguniang Bayan

Cc:

- Hon. Michael D. Dichoso
Punong Barangay of San Rafael
- Ms. Gemma Ferrer
Municipal Treasurer
- Mr. Roderick Domasig
MPDC
- Engr. Exequiel Destura
Municipal Engineer
- Ms. Maribel Aldon
Municipal Accountant



03/13/2024

John Lester Sanllan

03/11/24 4:44 PM

RECEIVED

MUNICIPAL ENGINEERING OFFICE
MUNICIPALITY OF PRIETO DIAZ
PROVINCE OF SORSOGON
REPUBLIC OF THE PHILIPPINES



Republic of the Philippines
MUNICIPALITY OF PRIETO DIAZ
Prieto Diaz, Sorsogon 4711
LGU TIN: 000794065
Official Email Add: sbprietodiaz@gmail.com



Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 11TH SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON MARCH 11, 2024 AT SAN RAMON BARANGAY HALL, SAN RAMON, PRIETO DIAZ, SORSOGON

PRESENT:

Hon. Avon D. Domalaon, MPA	Municipal Vice Mayor/Presiding Officer
Hon. Jo Madel D. Domalaon	S. B. Member
Hon. Bienvenido D. Ayo, Jr.	-do-
Hon. Luis Lee E. Espeña, Jr.	-do-
Hon. Alice D. Emano	-do-
Hon. Rodolfo E. Diolata	-do-
Hon. Juan D. Ebid	-do-
Hon. Albert D. Destura	-do-
Hon. Joseph H. Yap, Jr.	-do-
Hon. Antonio J. Emano, Jr.	LnB Pres./S. B. Member
Hon. Rene Joseph D. Domasian	PPSK Pres./S.B. Member

ABSENT:

RESOLUTION NO. 083-2024

Introduced by Hon. Juan D. Ebid

A RESOLUTION AUTHORIZING THE MUNICIPAL MAYOR, HON. ROMEO D. DOMASIAN, TO ENTER INTO A MEMORANDUM OF AGREEMENT WITH THE OFFICE OF THE PRESIDENTIAL ADVISER ON PEACE, RECONCILIATION AND UNITY (OPAPRU) REPRESENTED BY SECRETARY CARLITO G. GALVEZ, JR. FOR THE CONCRETING OF SAN RAFAEL ROAD (PHASE 5 COMPLETION) IN BRGY. SAN RAFAEL, PRIETO DIAZ, SORSOGON

WHEREAS, the Office of the Presidential Adviser on Peace, Reconciliation and Unity (OPAPRU) is the office mandated to manage, direct, integrate, and supervise the implementation of the comprehensive peace process through fostering reconciliation and unity among the Filipino people;

WHEREAS, the PAMANA program aims to contribute in the (1) improving of socio-economic conditions in conflict-affected and conflict-vulnerable areas as well as in areas covered by peace agreements through focused delivery of services; (2) enhancing of capacities of national government agencies and local governments for pursuing conflict-sensitive, peace-promoting, and gender-sensitive approach to development; and, (3) empowering of communities and strengthening their capacities to address issues of conflict and peace through activities that promote social cohesion;

WHEREAS, the OPAPRU shall, among others, transfer funds in the amount of 38,950,000.00, directly to the MLGU for the implementation of abovementioned PAMANA project, based on the following conditions and requirements;

1st Tranche - Upon MOA/contract signing and full compliance to pre-project implementation documentary requirements, 80% release.

2nd Tranche - Upon 100% physical and financial completion, submission of liquidation reports for the 1st tranche, and full compliance to post-project implementation documentary requirements, 20%.

WHEREAS, the OPAPRU shall further, assign and/or designate a Project Management Team (PMT) to closely monitor and coordinate and project implementation in coordination with the MLGU; ensure the documentation and reporting of the physical and financial progress of project implementation;

WHEREAS, the MLGU shall, among others, submit documentary requirements to facilitate the release of funds with the schedule of funds; open a bank account exclusively intended for the managements of PAMANA funds released by the OPAPRU; provide OPAPRU with bank account details to facilitate payment and documentation of the funds into OPAPRU's records; use the funds released by the OPAPRU solely for the implementation of the projects;

WHEREAS, on motion of Hon. Albert Destura, duly seconded by Hon. Antonio Emano, Jr. and Hon. Alice Emano;

HEREBY RESOLVED, to authorize the Municipal Mayor, Hon. Romeo D. Domasian, to enter into a Memorandum of Agreement with the Office of the Presidential Adviser on Peace, Reconciliation and Unity (OPAPRU) represented by Secretary Carlito G. Galvez, Jr. for the concreting of San Rafael Road (Phase 5 Completion) in Brgy. San Rafael, Prieto Diaz, Sorsogon;

FINALLY RESOLVED, to transmit this resolution to Hon. Romeo D. Domasian, Municipal Mayor, copy furnished Hon. Michael D. Dichoso, Punong Barangay of San Rafael; Ms. Gemma Ferrer, Municipal Treasurer; Mr. Roderick Domasig, MPDC; Engr. Exequiel Destura, Municipal Engineer; Ms. Maribel Aldon, Municipal Accountant; and all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA-YAO
Secretary to the Sangguniang Bayan

ATTESTED:


Hon. AVON D. DOMALAON, MPA
Municipal Vice Mayor/Presiding Officer

MEMORANDUM OF AGREEMENT

KNOWN ALL MEN BY THESE PRESENTS:

This Memorandum of Agreement is entered into this _____ by and between:

The **OFFICE OF THE PRESIDENTIAL ADVISER ON THE PEACE, RECONCILIATION AND UNITY (OPAPRU)**, a national agency existing under the laws of the Philippines, with office address at 7th Floor Agustin I Bldg., F. Ortigas Jr. Road, Ortigas Center, Pasig City herein represented by **SECRETARY CARLITO G. GALVEZ, JR.**, hereinafter referred to as “OPAPRU”;

-and-

The **MUNICIPAL LOCAL GOVERNMENT UNIT (MLGU) OF PRIETO DIAZ, SORSOGON** with office address at Poblacion, Bulusan, Sorsogon represented by **MAYOR ROMEO D. DOMASIAN** by virtue of Municipality of Prieto Diaz Sangguniang Bayan Resolution No. _____, hereinafter referred to as “MLGU”;

(also referred to collectively as the “Parties”)

-WITNESSETH-

WHEREAS, the Office of the Presidential Adviser on Peace, Reconciliation and Unity (OPAPRU) is the office mandated to manage, direct, integrate, and supervise the implementation of the comprehensive peace process through fostering reconciliation and unity among the Filipino people. The agency was created through Executive Order No. 125, s. 1993 which was later amended in 2001 with the signing of Executive Order No. 3, s. 2001 and Executive Order No. 158, s. 2021 as a reaffirmation of the government’s commitment to achieving just and lasting peace through a comprehensive peace process.

WHEREAS, the MLGU is a local government unit under Republic Act no. 7160, exercising such powers and discharging functions and responsibilities as are necessary, appropriate, or incidental to efficient and effective provisions of the basic services and facilities intended primarily to service the needs of the residents of the municipality, which includes among others, infrastructure facilities;

WHEREAS, the **PAYapa at MASaganang PamayaNA (PAMANA) Program** is the national government’s peace and development convergence program which forms an integral part of the Philippine Comprehensive Peace Process – directly and actively contributing to the transformation and normalization program in the implementation of various peace agreements while ensuring the sustainability of project interventions in peace and development focus areas.

WHEREAS, under Chapter 9 on Peace and Security of the Philippine Development Plan (PDP) for 2011-2016 and Chapter 8 on Peace and Security of the updated PDP for 2011-2016 which indicated the **PAYapa at MASaganang PamayaNAN (PAMANA) Program** as the Government’s development program for isolated, hard-to-reach, and conflict-affected and vulnerable communities. It was also embodied in Chapter 17 on Attaining Just and Lasting Peace of the updated PDP for 2017-2022 which

included PAMANA in the Government's critical mechanisms for advancing the protection and development of conflict-affected areas;

WHEREAS, the PAMANA Program is affirmed in Chapter 13 of the latest PDP 2023-2028 to Ensure Peace and Security and Enhance Administration of Justice, particularly in Outcome 1: conflict-affected communities and conflict-vulnerable areas protected and development sustained, ensuring the "rehabilitation and catch-up development of communities through the implementation of various interventions;

WHEREAS, the Program is likewise confirmed to support the Five-Point Peace, Reconciliation and Unity Agenda of the OPAPRU, particularly on Agenda 5 on the "enhancement of the delivery of conflict-sensitive and peace-promoting (CSPP)-compliant development interventions in addressing the key drivers of conflict through convergence and complementation in support of the peace process."

WHEREAS, the PAMANA Program aims to contribute in the (1) improving of socio-economic conditions in conflict-affected and conflict-vulnerable areas as well as in areas covered by Peace Agreements through focused delivery of services; (2) enhancing of capacities of national government agencies and local governments for pursuing conflict-sensitive, peace-promoting, and gender-sensitive approach to development; and, (3) empowering of communities and strengthening their capacities to address issues of conflict and peace through activities that promote social cohesion;

WHEREAS, to facilitate the implementation of Fiscal Year 2024 PAMANA project and in recognition of the significant role of local government units in peace-building, the OPAPRU shall partner with the **MUNICIPAL LOCAL GOVERNMENT OF PRIETO DIAZ, SORSOGON** for the implementation of the PAMANA project in its jurisdiction;

NOW THEREFORE, in consideration of the above premises, the parties hereby agree on the following terms and conditions:

**ARTICLE I
PURPOSE**

Section 1. The purpose of this MOA is to define the mutual and agency specific roles and responsibilities, as well as the institutional arrangements for collaboration and partnership between the PARTIES for the implementation of the PAMANA Program for FY 2024 in the Municipality of Prieto Diaz, Sorsogon;

**ARTICLE II
SITUS OF COLLABORATION**

Section 1. This MOA shall cover the implementation *and Monitoring of the PAMANA Project with its corresponding project cost:*

No.	Project Title	Project Cost (PhP)
1	Concreting of Brgy. San Rafael Road (Phase 5 completion), Brgy. San Rafael, Prieto Diaz, Sorsogon	38,950,000.00

ARTICLE III
INSTITUTIONAL ARRANGEMENT

Section 1. The OPAPRU shall:

A. Financial Management

- A. 1. Transfer funds directly to the MLGU for the implementation of abovementioned PAMANA project in the **Municipality of Prieto Diaz, Sorsogon**, based on the following conditions and requirements:

Tranche	Percentage	Condition
1 st Tranche	80%	Upon MOA/Contract signing and full compliance to pre-project implementation documentary requirements
2 nd Tranche	20%	Upon 100% physical and financial completion, submission of liquidation reports for the 1 st tranche, and full compliance to post-project implementation documentary requirements

- A. 2. Transfer of funds to the MLGU in accordance with the Commission on Audit (COA) Circular No. 94-013 dated 13 December 1994 and COA Circular No. 2012-001 dated 14 June 2012;

- A. 3. Ensure submission by the MLGU of the following reportorial requirements:

- a. Progress Reporting: (i) Monthly Project Status Report with Statement of Work Accomplished showing physical accomplishment, duly signed by appropriate LGU staff and approved by Local Chief Executive (LCE) and verified by Civil Society Organizations (CSO) partners; and (ii) Monthly Statement of Receipts and Disbursement (SORD)/Statement of Expenditure (SOE) duly signed by the Treasurer/Accountant and the Auditor attesting to the release of funds; and,
- b. Project Completion: (i) Project Status Report with Statement of Work Accomplished showing 100% physical accomplishment, Certificate of Completion/Turn-over and Acceptance, if applicable, duly signed by appropriate LGU staff and approved by LCE and verified by the CSO partners, (ii) Statement of Receipts and Disbursement (SORD)/Statement of Expenditure (SOE) duly signed by the Treasurer/Accountant and the Auditor attesting to 100% release of funds; and, (iii) LGU shall submit Audit Inspection Report Operations and Sustainability Plan.

B. Procurement

Ensure that procurement of goods, works and services for the projects shall be in accordance with the provisions of Republic Act No. 9184 or the Procurement Law and its Implementing Rules and Regulations.

C. Project Management, Monitoring and Reporting

- C. 1. Ensure that project implementation adheres to the conflict-sensitive and peace-promoting approach;

- C. 2. Assign and/or designate a Project Management Team (PMT) to closely monitor and coordinate the project implementation in coordination with the MLGU;
- C. 3. Undertake regular monitoring as basis for provision of technical assistance to the MLGU relative to PAMANA project implementation;
- C. 4. Ensure the documentation and reporting of the physical and financial progress of project implementation using the reporting tools from the OPAPRU (*Attached as Annex A are the Reporting Templates*);
- C. 5. Resolve issues and concerns that are directly reported to the OPAPRU arising from the implementation of the project covered by this MOA taking into consideration the recommendation of the OPAPRU;
- C. 6. Conduct with the MLGU a Joint Implementation Review of projects covered by this MOA to determine the impact and outcome of the projects;
- C. 7. Make available and/or provide upon request necessary and relevant information and technical documents on all the projects that are determined and agreed upon by OPAPRU and MLGU;
- C. 8. Establish timeline on the project completion based on the duly signed and approved Program of Work (POW) and Work and Financial Plan (WFP) of the implementing MLGU; and
- C. 9. Issue a Certificate of Completion when project implementation under this MOA is completed to the satisfaction and full acceptance of the OPAPRU.

Section 2. The MLGU shall:

A. Financial Management

- A. 1. Submit documentary requirements to facilitate the release of funds with the schedule of fund release under Article II, Section 2.1 of this MOA;

Tranche	Percentage	Documentary Requirement
1 st Tranche	80%	▪ Duly executed Memorandum of Agreement (MOA) between OPAPRU and MLGU ▪ Duly approved Project Proposal with plans for social preparation, operations and maintenance, and sustainability ▪ Approved Work and Financial Plan ▪ Signed digital geo-tagged photos of proposed project site ▪ Program of Works ▪ Detailed Engineering Design ▪ Copy of the Sangguniang Resolution authorizing the Mayor to sign the MOA ▪ Certification on the Opening of Special Account ▪ Certified Copy of the EO on the designation of the Focal Person ▪ Copy of Endorsement of local bodies identifying the project/s to be implemented in

		the community, as needed ■ Road Right of Way Certification ■ Deed of Donation/Certificate of Land Availability/Usufruct Agreement, whichever is applicable ■ Clearances (e.g., ECC-Environmental Clearance Certificate from DENR, FPIC- Free Prior Information Consent from NCIP, MGB-Mines and Geoscience Bureau from DENR, PAMB-Protected Areas Management Bureau from DENR, Water Potability Test from DOST/DOH/PHO, CNC Certificate of No Coverage from DENR)
2 nd Tranche	20%	■ Copy of duly executed service or supply contract between the implementing partner and contractor ■ 100% liquidation of the funds transferred as indicated in the liquidation report ■ 100% physical accomplishment as certified by the local chief executive and validated by OPAPRU ■ Minutes of Exit Conference ■ Certificate of Completion ■ Certificate of Turnover ■ Certificate of Acceptance ■ Final COA Inspection Report ■ Updated Operations and Maintenance and Sustainability Plans ■ Signed digital geo-tagged photos of completed project ■ Project/Community Billboard

- A. 2. Open a bank account exclusively intended for the management of PAMANA funds released by the **OPAPRU**;
- A. 3. Provide **OPAPRU** with bank account details to facilitate payment and documentation of the funds into **OPAPRU**'s records;
- A. 4. Accept and issue Official Receipts for the funds transferred by the **OPAPRU**;
- A. 5. Maintain a separate subsidiary record/ledger for fund transfers;
- A. 6. Use the funds released by the **OPAPRU** solely for the implementation of the projects;
- A. 7. Keep and maintain financial and accounting records for the PAMANA funds in accordance with the generally accepted accounting and auditing principles;
- A. 8. Ensure proper disbursement of funds for the implementation of the projects, in accordance with COA rules and regulations;
- A. 9. Submit to the **OPAPRU** the following:
 - a. Progress Reporting: (i) Monthly Project Status Report with Statement of Work Accomplished showing physical accomplishment, duly signed by

appropriate LGU staff and approved by LCE and verified by CSO partners; and (ii) Monthly Statement of Receipts and Disbursement (SORD)/Statement of Expenditure (SOE) duly signed by the Treasurer/Accountant and the Auditor attesting to the release of funds;

- b. Project Completion: (i) Project Status Report with Statement of Work Accomplished showing 100% physical accomplishment, Certificate of Completion/Turn-over and Acceptance, if applicable, duly signed by appropriate LGU staff and approved by LCE and verified by the CSO partners; (ii) Statement of Receipts and Disbursement (SORD)/Statement of Expenditure (SOE) duly signed by the Treasurer/Accountant and the Auditor attesting to 100% release of funds; and, (iii) LGU shall submit Audit Inspection Report Operations and Sustainability Plan.

A. 10. Make available all records and files to the **OPAPRU** pertaining to transactions involving the PAMANA funds upon request for the COA Auditor;

A. 11. Refund to the **OPAPRU** any unused funds or savings generated after the project completion; and

A. 12. Acknowledge that the **OPAPRU** has made no actual or implied promise of funding except as agreed herein. If any portion of the fund is returned to the **OPAPRU** or if this MOA is rescinded for any valid reason, the **MLGU** shall also acknowledge that the **OPAPRU** shall have no further obligation to the former as a result of such return or rescission;

B. Procurement

B. 1. Handle the procurement of goods, works and services for the projects;

B. 2. Ensure that the procurement of goods, works and services for the projects shall be in accordance with the provisions of Republic Act No. 9184 or the Procurement Law and its Implementing Rules and Regulations.

C. Project Management, Monitoring and Reporting⁹

C. 1. Ensure conduct of social preparation;

C. 2. Ensure that project implementation adheres to the conflict-sensitive and peace-promoting approach;

C. 3. Assign and/or designate a PMT to closely administer the project implementation in coordination with the **OPAPRU**;

C. 4. Assign and/or designate focal person/s to serve as coordination contact point/s of **OPAPRU**;

C. 5. Implement and monitor the projects with funding support in accordance with existing and applicable mechanisms of the PAMANA Program (*Attached as Annex B is the Implementation Guidelines*);

C. 6. Ensure the documentation and reporting of the physical and financial progress of project implementation using the reporting tools from the **OPAPRU** (*Attached as Annex A are the Reporting Templates*);

- C. 7. Submit a monthly status report (both physical and financial) five (5) days before the end of every month and a quarterly project status update on PAMANA implementation every 20th of the last month of every quarter;
- C. 8. Resolve issues and concerns that are directly reported to the **OPAPRU** arising from the implementation of the projects covered by this **MOA** taking into consideration the recommendation of the **OPAPRU**;
- C. 9. Conduct with the **OPAPRU** a Joint Implementation Review of projects covered by this **MOA** to determine the impact and outcome of the projects;
- C. 10. Make available and/or provide upon request necessary and relevant information and technical documents on all the projects that are determined and agreed upon by the **OPAPRU** and **MLGU**;
- C. 11. Partner with other local, national and international organizations/agencies, non-government organizations, civil society organizations and peoples organizations in the project implementation, as deemed necessary; and
- C. 12. Ensure delivery of the projects on schedule and as specified under Article V of this **MOA**.

ARTICLE IV TRANSPARENCY AND ACCOUNTABILITY

Section 1. The Parties agree that compliance with all the requirements of the law and existing rules and regulations shall be ensured.

Section 2. The Parties agree to employ the following PAMANA Transparency and Accountability Mechanisms (TAM), as applicable: (1) adherence to performance-based fund release; (2) installation of community billboards; (3) feedback and report system; (4) web posting of progress reports; and (5) engagement of CSOs/NGOs as Third Party Monitors.

Section 3. In cases where the Third Party Monitor will be engaged, their monitoring activities shall be based in accordance with the guidelines to be provided by **OPAPRU**.

Section 4. The **OPAPRU** reserves the right to impose other measures or processes that will ensure the transparency of the projects and accountability of its concerned implementing units, in accordance with the general principles of good governance.

Section 5. In cases where the Third Party Monitor has raised issues on the result of a bidding process, such issue shall be resolved using the provisions stipulated under the Procurement Law.

Section 6. In case any issue on the project implementation is raised, the **OPAPRU** may exercise its visitorial power to resolve such issue at any time, which shall include access to the project site, project documents and concerned parties for consultation purposes, whenever deemed necessary.

ARTICLE V
ANTI-GRAFT AND CORRUPT PRACTICES ACT

Section 1. The Parties shall not, in any way, unduly benefit from this MOA, and shall at all times adhere to Republic Act No. 3019 or the the Anti-Graft and Corrupt Practices Act, as amended.

ARTICLE VI
EFFECTIVITY AND PERIOD OF AGREEMENT

Section 1. This MOA shall take effect upon signing hereof by the Parties and shall remain valid and effective until the projects are completed on or before 31 December 2024, unless otherwise revoked earlier by both Parties.

ARTICLE VII
AMENDMENT/REVISION

Section 1. No amendment or modification to this MOA shall be effective unless it is in writing and signed by duly authorized representatives of both parties.

ARTICLE VIII
SETTLEMENT OF DISPUTES

Section 1. Any disagreement in the implementation of the plans and provisions of this MOA, or any agreement related thereto, shall be settled amicably between the Parties. In case of other disputes, may arise from this Agreement involving but not limited to a demand for the specific performance of a Party's obligations or an interpretation of any of the provisions, shall first be settled amicably within thirty (30) calendar days from such demand. Should the dispute remain unresolved at the end of such period, it shall be submitted for arbitration under Sections 66071, Chapter 14, Book IV, Title III of the Administrative Code of 1987 (Executive Order No. 292), in relation to Presidential Decree No. 242 (Prescribing the Procedure for the Administrative Settlement of Claims and Controversies Between or Among Government-Owned and Controlled Corporations, and for Other Purposes) to the Office of the Government Corporate Counsel pursuant to Section 2.2., Rule 2, of the 2015 Uniform Rules on Dispute Resolution under PD No. 242.

Section 2. Any dispute on the content of this MOA, which is not disposed of by agreement between the Parties, shall be decided by OPAPRU, provided a written copy of the decision shall be furnished to the MLGU.

ARTICLE IX
INCENTIVE CLAUSE

Section 1. In the event that the project would be finished 3 months before the deadline mentioned in Article V, OPAPRU shall:

- a. Provide the MLGU an opportunity to prioritize for the next budget cycle any proposed project of the MLGU, with the project verified by the proper PAMANA unit; and

- b. Issue a commendation to the **MLGU** for their prompt completion of the project and such other recognition which may include recommendation to the Department of Interior and Local Government (**DILG**) to consider the **MLGU** in its "Seal of Good Local Governance" program.

ARTICLE X PENALTY CLAUSE

Section 1. The **OPAPRU** may suspend/withhold the release of the 20% final tranche if it was found out during the conduct of review and monitoring activities that the procurement of any contract is inconsistent with RA 9184 and its IRR.

Section 2. The **OPAPRU** may totally not release the 20% final tranche in any of the following instances:

- a. Failure of the **MLGU** to finish the project/s on the deadline provided under Article V of this **MOA**; or
- b. Failure of the **MLGU** to submit the complete documentary requirements (i.e. liquidation reports) on the deadline provided in this **MOA**.

Section 3. Failure on the part of the **MLGU** to comply with any provision of this **MOA** may warrant its revocation and shall give rise to the filing of appropriate administrative, civil and criminal case against the responsible party except in cases where:

- a. It is able to promptly notify in writing of the occurrence of any event or condition which may reasonably delay the progress or prevent the completion of this **MOA**, in whole or in part, as soon as the facts became known. A penalty shall be deducted by **OPAPRU** from the scheduled payment, for every month of delay in the submission of deliverables. The penalty shall be computed as 5% of the corresponding amount due from **OPAPRU** for the specific output; and
- b. It is able to promptly notify in writing the occurrence of any force majeure affecting this **MOA**, to the extent that would make impossible or impracticable for it to carry out, in whole or in part, its obligations in this **MOA**. The term "force majeure" shall mean events that can be attributed to causes specified hereunder:
 - i. Nature cause such as earthquake, typhoons, floods, and epidemics; and,
 - ii. Human causes such as revolutions, insurrections, blockages, riots, civil disturbance, court injunctions, strikes, and other analogous or similar causes.

Section 4. In case the **MOA** is terminated due to any of the above-enumerated reasons, the **MLGU** shall be obliged to return the unexpended balance of the released portion of the funds or the pertinent portion related to the cancelled component, whichever applicable.

ACKNOWLEDGEMENT

Republic of the Philippines)

_____) S.S.

BEFORE ME, a Notary Public for and in the above jurisdiction, personally appeared the following:

Name	Identification Number	Date Issued	Place Issued

Known to me to be the named persons who executed the foregoing instrument and acknowledged to me that the same is their own free will and voluntary act and deed.

This instrument consists of _____ pages, including this page wherein this **ACKNOWLEDGEMENT** is written, and is signed by the Parties and their instrumental Witnesses on each and every page hereof.

WITNESS MY HAND AND SEAL this _____ day of _____ 2024 in _____, Philippines.

NOTARY PUBLIC

Doc No. : _____;

Page No.: _____;

Book No.: _____;

Series of 2024.